

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Gotlieb	Team: Team # 4	CCRB Case #: 200107902	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 12/04/2001 9:30 AM	Location of Incident: Centre Street & Worth Street Manhattan	18 Mo. SOL 6/4/2003	Precinct: 05
Date/Time CV Reported Sat, 12/08/2001 5:55 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 12/08/2001 5:55 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Leonardo Ortiz	13421	899682	048 PCT
2. CPT Michael Pilecki	00000	880208	TRF CD

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Richard Diblasio	00000	892301	TRF CD
2. POF Mary Raftery	30819	919595	023 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Leonardo Ortiz	Force: Police Officer Leonardo Ortiz used physical force against § 87(2)(b)	A . Exonerated
B . CPT Michael Pilecki	Force: Captain Michael Pilecki used physical force against § 87(2)(b)	B . Exonerated

Synopsis

On December 4, 2001, at approximately 9:30 AM, § 87(2)(b) was driving a marked Department of Transportation (DOT) vehicle north on Centre Street in Manhattan, en route to the DOT headquarters on Worth Street. At the Worth Street intersection, § 87(2)(b) was told by Lieutenant Richard Diblasio, who was overseeing a traffic checkpoint set by Captain Michael Pilecki in response to the altered traffic conditions in Lower Manhattan following the September 11th attacks, that she could not make a left turn. § 87(2)(b) verbally resisted and maintained that she would make the turn, at the same time, preventing traffic flow throughout the intersection. Lieutenant Diblasio instructed Officer Leonardo Ortiz to issue § 87(2)(b) a summons § 87(2)(b) and told her to move her car to the side of the street. § 87(2)(b) then struck the Lieutenant with her car as she proceeded to drive northbound on Centre Street. The Lieutenant held onto the driver's window in fear of falling underneath the tires and began running with the car. Two Supreme Court Officers observed this and ran onto the street to try and stop § 87(2)(b)'s car. One drew his firearm and stood in the middle of Centre Street until § 87(2)(b) pulled her vehicle over to the west side of Centre Street between Worth and Leonard Streets. Lieutenant Diblasio then called Captain Pilecki to the scene to verify her arrest. He arrived and, after observing Officer Ortiz having great difficulty in subduing § 87(2)(b), assisted in her arrest. § 87(2)(b) alleged that Captain Pilecki, and Officer Ortiz each used physical force while handcuffing her. § 87(2)(g) allegations A and B are being exonerated

Summary of Complaint

Complainant Statement

§ 87(2)(b) was driving to work on December 4, 2001 at approximately 9:30 AM when she approached the intersection of Centre Street and Worth Street. At the intersection, she displayed her identification to a female officer, later identified as Officer Mary Raftery, who was directing traffic to continue northbound on Centre Street. § 87(2)(b) driving an official Department of Transportation vehicle, "made it clear" that she needed to turn onto Worth Street, but the officer would not let her make the left turn and eventually told her to speak with Lieutenant Richard Diblasio, who was standing nearby. § 87(2)(b) had never before had any problem turning onto Worth Street from Centre Street.

A Hispanic male officer, later identified as Officer Leonardo Ortiz, and a superior officer, later identified as Lieutenant Diblasio, approached her car and began yelling at her to move her vehicle. § 87(2)(b) displayed her identification once again and explained that she was going to the Department of Transportation building on Worth Street, but the Lieutenant maintained that she needed to move her vehicle. She stated that her vehicle was stopped on the far west side of the street, adjacent to the parked vehicles and not blocking the flow of traffic on Centre Street. However, since the Lieutenant had ordered her to move her car, she complied. As she pulled off, the Lieutenant grabbed the side of her window with his hands and yelled at her to stop the vehicle and get out. § 87(2)(b) pulled over in front of 85 Centre Street, between Worth and Leonard, and she called her supervisor on a cellular phone. At this point, Officers Ortiz and Raftery were present at her vehicle, and they demanded that she get out of her vehicle. After emerging from her vehicle, she stood between these officers for approximately ten minutes, and observed "a number of passenger vehicles" turning off of Centre Street onto Worth Street.

A supervising officer, later identified as Captain Michael Pilecki, then approached the three individuals and said, "arrest her." § 87(2)(b) was turned around to face her car and felt "pulling and tugging on her arms." She told Officer Ortiz that he was hurting her and she informed all of the officers that she had a bad back. She was crying from pain at this point as her arms were being "bent all over the place." She was then put in a patrol car and taken to the 5th precinct.

Results of Investigation

Police Documents

Officer Raftery's memo book entry (enclosure 7D-F) for this incident merely states that an arrest was made in front of 80 Centre Street by Lieutenant Diblasio. Lieutenant Diblasio's memo book entry (enclosure 8D-E) provides a detailed description of the events which occurred on December 4th.

The UF-49 Unusual Occurrence Report (enclosure 11A-C) was completed on December 4, 2001, by Sergeant John Paolucci, for Captain Michael Pilecki. It indicates that § 87(2)(b) was arrested § 87(2)(b) was driving northbound on Centre Street in a marked Department of Transportation minivan. At the Worth Street intersection, § 87(2)(b) tried to turn west, “but was unable to effect the turn due to heavy west-bound traffic.” As a result, her vehicle was obstructing both east-bound and west-bound traffic on Worth Street and north-bound traffic on Centre Street. Officer Ortiz instructed § 87(2)(b) to continue north on Centre Street, but she became “irate” and “belligerent,” attracting the attention of Lieutenant Diblasio, who instructed her to do the same. She told him, “This is bullshit, I’m going down Worth!” The Lieutenant then informed her that she would be issued a summons and instructed her to pull over. § 87(2)(b) then accelerated her vehicle, striking Lieutenant Diblasio’s right leg, and catching the microphone wire of his portable radio in the door. The Lieutenant ordered her to stop, but § 87(2)(b) continued accelerating, while he ran alongside her vehicle. Supreme Court Officers § 87(2)(b) and § 87(2)(b) observed this, and “stood in front of the vehicle” to make it stop. Lieutenant Diblasio ordered § 87(2)(b) to exit her vehicle but she resisted all attempts to remove her. Once out of the vehicle, Officer Ortiz attempted to put her under arrest, but she continued to resist, “slapping [his] hand and kicking [Captain Pilecki].” § 87(2)(b) was eventually placed under arrest and taken to the 5th Precinct. Lieutenant Diblasio was treated at § 87(2)(b) for injuries to his right leg and arm, and back. The Line of Duty Injury Report (enclosure 13) indicates the same information as the UF-49, however, focuses primarily on the segment of the incident in which Lieutenant Diblasio was injured.

A State of New York Unified Court System Unusual Occurrence Report (enclosure 12) was also completed on December 4th following the incident. It indicates that SCO § 87(2)(b) and SCO § 87(2)(b) assisted the NYPD by stopping a vehicle driven by § 87(2)(b). She had struck Lieutenant Diblasio and dragged him north on Centre Street. SCO § 87(2)(b) ran in front of the van and ordered the driver to stop. The van continued to accelerate and SCO § 87(2)(b) “fearing for his and the PO’s life” drew his 9mm firearm. § 87(2)(b) was ordered to exit the van, and “struck and kicked Lieutenant Diblasio and Officer Ortiz.

In § 87(2)(b) Civilian witness statement (enclosure 14A), he indicates that he observed “a car pulling a cop on duty dragging him down the street.” This officer was “yelling stop, stop, stop.” Leonardo Ortiz’s Witness Statement (enclosure 14B) indicates that after Lieutenant Diblasio informed § 87(2)(b) that she would be issued a summons, she yelled at him “and intentionally accelerated, pulling Lieutenant Diblasio down the street.” SCO § 87(2)(b) Witness Statement (enclosure 14C) indicates the same information, with the addition of his running in front of § 87(2)(b)’s van to “help stop it.” SCO § 87(2)(b) Witness Statement (enclosure 14D) indicates the same information as that of SCO § 87(2)(b). The Motor Vehicle Accident Report (enclosure 15) completed by Officer Ortiz indicates that the operator of “vehicle #1 did strike pedestrian police Lieutenant [who] was performing official police duties.”

§ 87(2)(b)’s Online Booking Sheet (enclosure 16A-B) indicates that she was arrested § 87(2)(b). The narrative states that she refused a lawful order to move her vehicle. She then accelerated, causing injury to MOS. She then kicked and struck other MOS and refused to be cuffed. Officer Leonardo Ortiz was the arresting officer and vouchers #§ 87(2)(b) and #§ 87(2)(b) were prepared. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] Voucher #§ 87(2)(b) (enclosure 18) recorded the confiscation of § 87(2)(b)’s automobile and voucher #§ 87(2)(b) (enclosure 19) recorded the confiscation of a bottle of prescription medication. The Prisoner Holding Pen Roster (enclosure 20) does not indicate that § 87(2)(b) was held at the 5th precinct. The Command Log of the 5th precinct for December 4, 2001 (enclosure 21A-J) indicates that § 87(2)(b) was brought into the precinct at 9:50 AM by Officer Ortiz and her physical appearance was good.

§ 87(2)(a) PBH §18(6)

§ 87(2)(b)

Subject Officer Statements

On December 4th, Officer Leonardo Ortiz was working a traffic detail in Lower Manhattan with a Officer Mary Raftery, and Lieutenant Richard Diblasio. He was directing traffic, as ordered by the Lieutenant, away from Worth Street and uptown on Centre Street. He recalled a white marked Department of Transportation van approaching said intersection, driven by a woman, later identified as § 87(2)(b). § 87(2)(b) wanted to turn onto Worth Street, but Officer Ortiz, in the presence of Officer Raftery, who had briefly spoken to § 87(2)(b) prior to this conversation, told her that she could not. § 87(2)(b) continued to insist on making the turn and Lieutenant Diblasio approached the three of them to assist.

After § 87(2)(b) continued to insist that she could make the turn onto Worth Street, Lieutenant Diblasio told her to pull over, informing her that she will be issued a summons. She then moved her car and the Lieutenant held onto her window “because he feared her driving away.” She drove north-bound on Centre Street at approximately 20-30 mph and Officer Ortiz heard the Lieutenant say, “whoa, whoa, whoa, stop.” § 87(2)(b) eventually stopped somewhere on Centre Street between Worth and Leonard.

Officers Ortiz and Raftery followed the van from the intersection to where § 87(2)(b) eventually pulled over. The Lieutenant was noticeably injured, but he never left the vicinity of her vehicle. Officer Ortiz, as soon as he arrived at § 87(2)(b)'s vehicle, asked her for her license and registration. He still intended to issue her a summons based on the Lieutenant's prior request. However, § 87(2)(b) refused to provide any document, after multiple requests from Officer Ortiz. Lieutenant Diblasio then ordered Officer Ortiz to arrest § 87(2)(b). He asked her to exit her vehicle and she refused. He then grabbed her arm while she was in the vehicle to try and remove her, but § 87(2)(b) slapped his arm away, telling him “don't you touch me.” Officer Ortiz stated that he then used “necessary force” to remove her from the vehicle, after she remained non-compliant following two separate requests. This essentially consisted of his pulling her out of the vehicle with both of his hands on both of her arms.

Outside of the vehicle, § 87(2)(b) then refused to be handcuffed. The Lieutenant was present, and Captain Michael Pilecki, was also present. § 87(2)(b) started “moving her arms around,” and the officers “used the amount of force necessary to handcuff her.” § 87(2)(b) refused to comply and Officer Ortiz needed the Captain's assistance to subdue her. Officer Ortiz was on one arm and the Captain was on the other. The Lieutenant was not directly involved in the arrest.

Captain Michael Pilecki was overseeing the Traffic Control Division detail that covered Lower Manhattan south of Canal Street on December 4th. He received a 10-85 from Lieutenant Diblasio to respond to the corner of Centre and Worth. The checkpoint at that intersection required all vehicles going north on Centre Street to not be allowed to turn west onto Worth Street. Upon his arrival, Lieutenant Diblasio informed him of all of the events that had transpired. Captain Pilecki observed a number of individuals around § 87(2)(b)'s van, which was on the west side of Centre Street, including a few “state corrections officers.” With the information provided to him from Lieutenant Diblasio, Captain Pilecki determined that the Lieutenant had, in fact, been assaulted, and ordered her arrest. § 87(2)(g)

Witness Officer Statement

§ 87(2)(g) On December 4th, Lieutenant Richard Diblasio instructed Officer Leonardo Ortiz to prevent cars from traveling west on Worth Street, other than “World Trade Center vehicles.” He observed a white minivan approach the intersection at a red light and the driver “became loud” with Officer Ortiz. When the light changed, § 87(2)(b) began to block the intersection in all directions, and Lieutenant Diblasio decided to approach the car. He told her to continue north-bound on Centre Street, to which § 87(2)(b) replied, “that's bullshit, I work down here.” § 87(2)(b) provided a Department of Transportation identification, but Lieutenant Diblasio maintained that she could not make this turn. § 87(2)(b) responded, “that's bullshit, I work down here, I'm going this way.” Traffic at this intersection became extremely congested at this point because § 87(2)(b) was preventing cars from flowing in any direction.

Lieutenant Diblasio then told § 87(2)(b) to pull over and instructed Officer Ortiz to give her summonses § 87(2)(b). § 87(2)(b) then said, “bullshit,” and she “floored the van.” Since the van’s wheels were turned toward Worth Street, the right side of Lieutenant Diblasio’s body was struck by § 87(2)(b)’s van as she accelerated because he “was standing immediately next to the driver’s side door.” This caused him to fall, but since the driver’s window was open, he was able to grab it with both hands. Lieutenant Diblasio held onto the driver’s window because he feared that, if he let go, he would fall underneath the tires. Since she was blocking all north-bound traffic, there were no cars in front of her on Centre Street. The wire connecting his police radio to his shoulder became “wedged underneath the door handle.” He could not get the wire loose, and kept on saying, “stop, stop, stop.” § 87(2)(b) was only able to drive 6 or 7 car lengths before two Supreme Court Officers, a male and female, later identified as SCO § 87(2)(b) and SCO § 87(2)(b) “came running down the stairs” when they saw what was happening. The male jumped in front of her van with his gun pointed at the van. § 87(2)(b) eventually slowed down and stopped. At this point, Lieutenant Diblasio “started feeling a pain in [his] back and down [his] leg.”

All officers told § 87(2)(b) to exit her van, but she ignored them and made a cellular phone call. Lieutenant Diblasio called Captain Pilecki to the scene, and upon his arrival “within seconds,” told him the story. The Captain and Officer Ortiz tried opening the doors to § 87(2)(b)’s van, but they were locked. Somehow, Officer Ortiz was able to open the door and tried removing her from the van. She then “smacked the top of his hand” and yelled “why are you manhandling me.” The Captain assisted Officer Ortiz in removing § 87(2)(b) from the car and then assisted in her arrest. § 87(2)(b) was “fighting and resisting,” while the Captain was holding her elbows to enable Officer Ortiz to handcuff her. She was eventually subdued when Captain Pilecki handcuffed one of her hands and Lieutenant Diblasio handcuffed the other—they then connected the handcuffs. Lieutenant Diblasio went Line of Duty and was out of work for 2 months following the incident.

§ 87(2)(g) Officer Mary Raftery § 87(2)(g) ran after § 87(2)(b)’s van as she took off with Lieutenant Diblasio. She stated that it appeared as if she wanted to “flee the scene to avoid the summons.” § 87(2)(b) eventually got out of the car, and waited between Officers Raftery and Ortiz until the Captain arrived.

Conclusions and Recommendations

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegations

- A. **Force:** Officer Leonardo Ortiz used physical force against § 87(2)(b) in violation of Patrol Guide Procedure 203-11.
- B. **Force:** Captain Michael Pilecki used physical force against § 87(2)(b) in violation of Patrol Guide Procedure 203-11.

§ 87(2)(g)
[REDACTED]. Although Officer Ortiz and Lieutenant Diblasio testified that force was used to remove § 87(2)(b) from her van, § 87(2)(b) made no mention of this fact and concentrated her allegations in the force used to effect her arrest. § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)

Both Officer Ortiz and Captain Pilecki admitted to having used force against § 87(2)(b) in effecting her arrest. § 87(2)(g)

According to Patrol Guide Procedure 203-11, “only that amount of force necessary to overcome resistance will be used to effect an arrest.” § 87(2)(g)

In her CCRB statement, § 87(2)(b) denied resisting the officers at any point throughout the entire incident, specifically when informed by Captain Pilecki that she would be arrested. § 87(2)(g)

Both Officers Ortiz and Raftery recalled § 87(2)(b) resisting their instructions to continue north on Centre Street to the point where Lieutenant Diblasio felt that he needed to intervene. Lieutenant Diblasio also recalled § 87(2)(b) resisting, using charged words like “bullshit” in doing so, to the point where he felt that she deserved to be issued a summons § 87(2)(b). § 87(2)(g)

Both Captain Pilecki and Lieutenant Diblasio indicated that two sets of handcuffs were needed to subdue § 87(2)(b) due to her resistance. § 87(2)(g)

§ 87(2)(g)

Captain Pilecki stated that he grabbed § 87(2)(b)'s elbows with both of his arms to try and facilitate her handcuffing by Officer Ortiz. According to both the Lieutenant's statement, as well as that of Captain Pilecki, § 87(2)(b) responded to this by kicking him. Because of this, Captain Pilecki released one of her arms to place handcuffs on one of her wrists, while Officer Ortiz restrained her other arm to enable Lieutenant Diblasio's placement of his handcuffs around her other wrist. Both handcuffs were then connected together to subdue her. § 87(2)(g)

§ 87(2)(g)

Patrol Guide Procedure 203-11 states that “whenever it becomes necessary to take a violent or resisting subject into custody, responding officers should utilize appropriate tactics in a coordinated effort to overcome resistance.” § 87(2)(g)

allegations A and B are being submitted with the recommendation that they be *exonerated*.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: